IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section 331 of the Code of Criminal Procedure Act No. 15 of 1979.

Democratic Socialist Republic of Sri Lanka

Complainant

CA Case No: CA/HCC/0102/24

HC of Tangalle Case No: HC/95/17

Vs.

Wijenayake Kankanamge Ranjith Kumara alias Hichchi Mama

Accused

AND NOW BETWEEN

Wijenayake Kankanamge Ranjith Kumara alias Hichchi Mama

Accused-appellants

V.

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant-Respondent

Before: **B. Sasi Mahendran, J.**
Amal Ranaraja, J

Counsel : Niroshan Mihindukulasuriya for the Accused-Appellant
Shanaka Wijesinghe for the Respondent

Written Submissions On: 12.11.2024 (by the Accused-Appellant)
18.06.2025 (by the Respondent)

Argued On: 27.01.2026

Judgment On: 25.02.2026

JUDGEMENT

B. Sasi Mahendran, J.

The Accused-Appellant (hereinafter referred to as 'the Appellant') was indicted before the High Court of Tangalle on two counts of rape committed on Wijenayake Kankanamge Thilini and Wijenayake Kankanamge Dilini, who were twin sisters, and one count of grave sexual abuse committed on Wijenayake Kankanamge Dilini, punishable under Section 364 (2)(e) and Section 365B (2) (b) of the Penal Code as amended by Act No. 22 of 1995.

At the trial, the prosecution led evidence from 7 witnesses, and the Appellant gave a dock statement.

At the conclusion of the trial, the Learned High Court Judge by judgment dated 14.03.2024 found the Appellant guilty of the 1st and 2nd counts and imposed a sentence of 10 years of rigorous imprisonment and a fine of Rs. 7500/- and 3 months of rigorous imprisonment in default. Further, compensation of Rs. 300,000/- was ordered to be paid to each of the victims; in default, a term of 6 months of rigorous imprisonment was imposed, and the appellant was acquitted of the 3rd count.

Being aggrieved by the aforementioned conviction and the sentence, the Accused has preferred this appeal to this Court.

When the matter was argued on 27.01.2026, the Learned Counsel called upon the Accused to move to withdraw the Appeal against the conviction and canvass only the sentence, on the basis that the Learned High Court Judge had failed to consider the mitigatory factors when imposing the sentence.

It is well established that, in the process of sentencing, Courts are required to take into account both aggravating and mitigating circumstances, together with the gravity of the offence. At the stage of inquiry preceding the imposition of sentence, the Counsel for the Prosecution pleaded the following factors as aggravating:

1. At the time of the offence victims were 7 years old, and the Appellant was 27 years old.
2. The Appellant was a neighbour of the victims, thereby occupying a position of proximity and familiarity.

Further, before sentencing, the Counsel for the Appellant pleaded the following factors as mitigating:

1. The Appellant is unmarried and 41 years of age.
2. His occupation is that of a three-wheeler driver, which is his sole means of livelihood.
3. The Appellant's mother is deceased, and his father is the only surviving parent, who is in ill health.
4. The Appellant bears the responsibility of caring for his ailing father.

In the instant case, the said sentence or penalty prescribed by written law is found in Section 354 and Section 364 (2)(e) of the Penal Code;

Section 354 of the Penal Code reads as follows,

> *"Whoever kidnaps any person from Ceylon or from lawful guardianship shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine"*

Section 364 (2)(e) of the Penal Code reads as follows,

> *(2) "Whoever—*

(e) commits rape on a woman under eighteen years of age; shall be punished with rigorous imprisonment for a term not test than ten years and not exceeding twenty years and with fine and shall in addition be ordered to pay compensation of an amount determined by court to the person in respect of whom the offence was committed for the injuries caused to such person;

Provided, however, that where the offence is committed in respect of a person under sixteen years of age, the court may, where the offender is a person under eighteen years of age and the intercourse has been with the consent of the person, impose a sentence of imprisonment for term less than ten years.

Our Courts have considered that when the Learned Trial Judge considers the mitigatory and aggravating factors, there is a duty cast on the Judge to give reasonable consideration to such factors. I am mindful that the starting point of the sentence for this rape is 10 years.

His Lordship S.N. Silva J (as he was then) in the case of ***Attorney General v. Ranasinghe and Others*** (1993) 2 SLR 81 had referred to the judgment of Kieth Billiam (1986) Volume Criminal Appeal Report 347, where the Court had identified the following instances as aggravating features.

"1. Violence is used to commit the rape.

2. A weapon is used to frighten the victim.

3. Rape is repeated.

4. The Defendant had a previous conviction of rape or other serious offences.

5. The victim is either very old or very young.

Further held that "where any one or more aggravating factors are present, the sentence should be substantially higher than the figure suggested as the starting point."

In the instant case, the starting point for sentencing in respect of the offence is ten years. Thereafter, it is incumbent upon the Learned High Court Judge to exercise his discretion by striking a balance between the aggravating and mitigating factors relevant to the

circumstances of the case. In the instant case, the Learned High Court Judge has considered the following factors,

> මෙම දෙපාර්ශ්වයේ කරුණු සැලකිල්ලට ගැනීමේදී විශේෂයෙන් පැමිණිල්ල විසින් ඉදිරිපත් කර ඇති කරුණු කෙරෙහි පැමිණිල්ලේ අවධානය යොමු කළ යුතුය. මෙම අපරාධය සිදු කරන විට විත්දිත තැනැත්තියන්ගේ එනම් පැ.සා.01 ගේ සහ පැ.සා.02 ගේ වයස අවුරුදු 7 ක් බව පෙනී යයි. ඒ වන විට විත්තිකරුගේ වයස අවුරුදු 27 ක් වන අතර ඔහු තරුණු වියේ පසු වූ හොඳින් දැනුම් තේරුම් ඇති පුද්ගලයෙකු බව ඉතා පැහැදිලිය. නමුත් මේ විත්දිත දැරියන් දෙදෙනාම ඒ වන විට 2 වසරේ අධ්‍යාපනය ලබන ලද ඉතා කුඩා දැරියන්ය. මෙම නඩුවේ කරුණු දෙස අවධානය යොමු කිරීමේදී විශේෂයෙන්ම අධිකරණය අවාධානය යොමු කළ යුතු කරුණ වන්නේ එම කුඩා නිවුන් දැරියන් දෙදෙනාම එකම අවස්ථාවක එක් වරකට එක් අයෙකු බැගින් නිවසේ කිසිවෙකු නොසිටි අවස්ථාවක මෙම අපරාධයට විත්තිකරු විසින් ගොදුරු කරගෙන තිබීමයි. ඒ අනුව විත්තිකරුට දඬුවම් නියම කිරීමේදී මෙම වරදේ බරපතල ස්වභාවයත්, මෙවන් කුඩා දරුවන් සම්බන්ධයෙන් මෙවන් බරපතල අපරාධ අනාගතයේ කරන්නන් එයින් වළක්වා ගැනීම සඳහා සමාජයට පණිවිඩයක් ලැබෙන ආකාරයට දඬුවම් නියම කළ යුතු අවස්ථාවක් බව මේ අවස්ථාවේදී සටහන් කර තබමි. දඬුවම අඩු කිරීම සම්බන්ධයෙන් කරුණු සළකා බැලීමේදි ඔහුට පෙර වැරදි නොමැති බව නිරීක්ෂණය කරමි. ඊට අමතරව මේ වන විට ඔහු වයස අවුරුද 41 ක අවිවාහක පුද්ගලයෙක් බවට කරුණු ඉදිරිපත් කිරිමත් සිදු කර ඇත.
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> ඒ අනුව මෙම විත්තිකරුට දඬුවම් නියම කිරීමේදී ඔහු මෙම අපරාධය සිදු කරන අවස්ථාවේදී වයස අවුරුදු 27 ක් වීම ද දඬුවම් අඩු කිරීම සම්බන්ධයෙන් මෙම අධිකරණය සැළකිල්ල දක්වයි. ඊට අමතරව මා ඉහතින් සඳහන් කළ ආකාරයට මෙම විත්තිකරු විසින් සිදු කරන ලද අපරාධය සමාජයට යම් පණිවිඩයක් ලබා දෙන ආකාරයේ දඬුවමක් ලබා දිය යුතුය යන කාරණය කෙරෙහි ද අවධානය යොමු කරයි.

It is evident that the Learned High Court Judge has duly taken into account both the mitigating and aggravating circumstances placed before the Court. I note that the Appellant is unmarried and 41 years of age, earns his livelihood as a three-wheeler driver, and bears the responsibility of caring for his ailing father following the demise of his mother. On the other hand, the gravity of the offence is heightened by the fact that both of the victims were children of 7 years at the time of the incident, and that the Appellant, being a neighbour, occupied a position of proximity and trust which he egregiously violated.

The Learned Judge has carefully weighed these competing considerations, recognizing the personal circumstances of the Appellant while also acknowledging the seriousness of

the offence, the vulnerability of the victims, and the broader societal impact of such conduct. In light of this balanced assessment, it is evident that the Learned High Court Judge has correctly considered the evidence and imposed a sentence of 10 years of rigorous imprisonment that is both proportionate to the offence and necessary to uphold the deterrent function of the criminal justice system.

Considering all these aspects, I find no justification to interfere with the sentence handed down by the Learned High Court Judge on 14.03.2024.

The Registrar of this court is directed to send this judgment to the High Court of Tangalle for compliance.

Appeal dismissed.

I make no order regarding costs.

JUDGE OF THE COURT OF APPEAL

Amal Ranaraja, J.
I AGREE

JUDGE OF THE COURT OF APPEAL